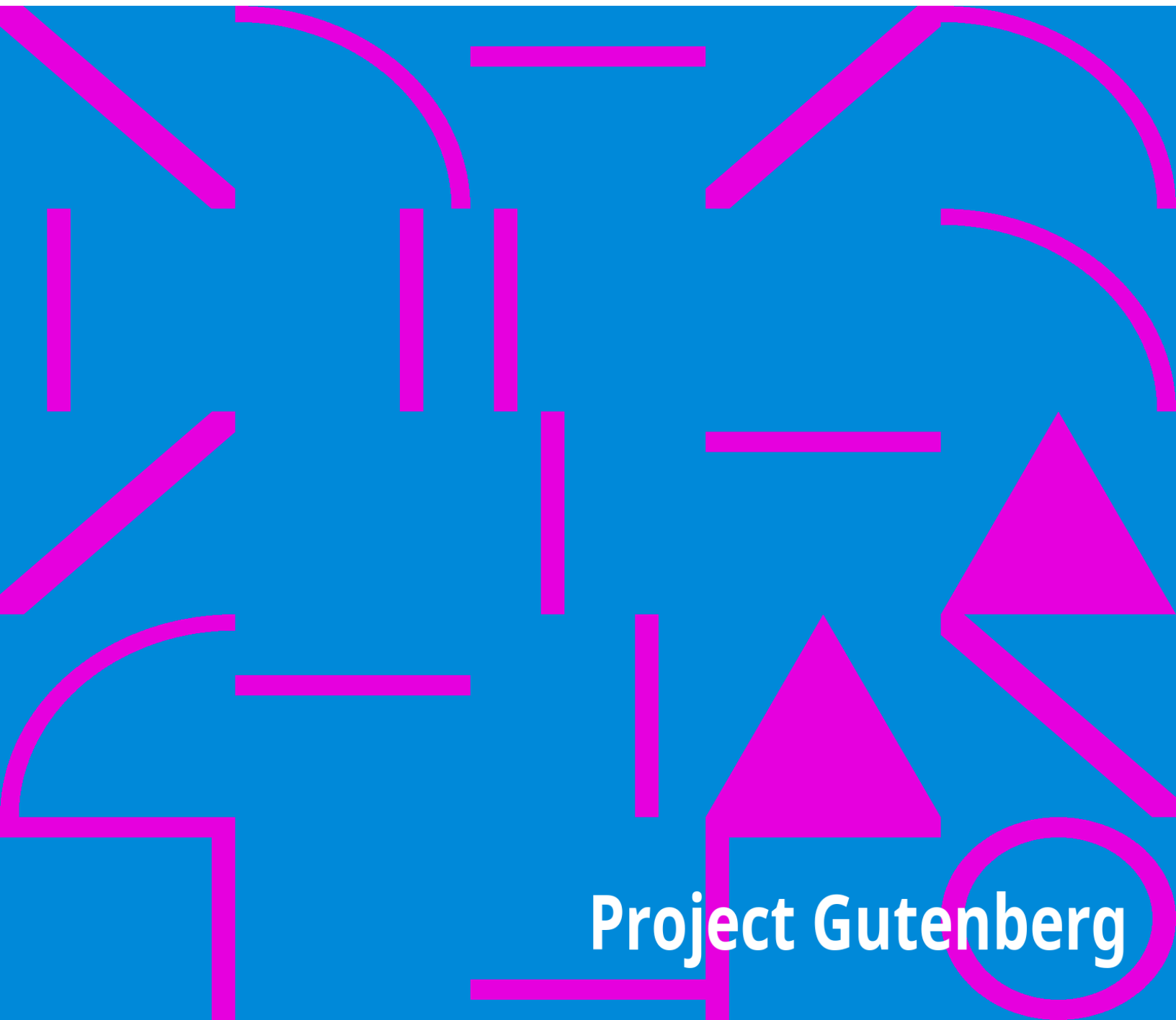


Midnight In Beauchamp Row

Anna Katharine Green

The background of the lower half of the image is a solid blue color. Overlaid on this are various magenta geometric shapes, including lines, arcs, triangles, and a circle. These shapes are scattered across the blue field, creating a modern, abstract design. Some shapes are solid, while others are outlines. The overall effect is a vibrant, geometric pattern.

Project Gutenberg

Midnight In Beauchamp Row

Anna Katharine Green

An abstract geometric pattern consisting of various magenta shapes on a blue background. The shapes include straight lines of different lengths and orientations, curved lines forming arcs, and solid geometric shapes such as triangles and a circle. The arrangement is scattered and non-repeating.

Project Gutenberg

The Project Gutenberg eBook of Midnight In Beauchamp Row

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Midnight In Beauchamp Row

Author: Anna Katharine Green

Release date: September 29, 2007 [eBook #22810]

Most recently updated: January 26, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/22810

Credits: Produced by David Widger

*** START OF THE PROJECT GUTENBERG EBOOK MIDNIGHT IN
BEAUCHAMP ROW ***

MIDNIGHT IN BEAUCHAMP ROW

By Anna Katharine Green (Mrs. Charles Rohlf)

Copyright, 1895, by American Press Association

It was the last house in Beauchamp Row, and it stood several rods away from its nearest neighbor. It was a pretty house in the daytime, but owing to its deep, sloping roof and small bediamonded windows it had a lonesome look at night, notwithstanding the crimson hall-light which shone through the leaves of its vine-covered doorway.

Ned Chivers lived in it with his six months' married bride, and as he was both a busy fellow and a gay one there were many evenings when pretty Letty Chivers sat alone until near midnight.

She was of an uncomplaining spirit, however, and said little, though there were times when both the day and evening seemed very long and married life not altogether the paradise she had expected.

On this evening—a memorable evening for her, the twenty-fourth of December, 1894—she had expected her husband to remain with her, for it was not only Christmas eve, but the night when, as manager of a large manufacturing concern, he brought up from New York the money with which to pay off the men on the next working day, and he never left her when there was any unusual amount of money in the house. But from the first glimpse she had of him coming up the road she knew she was to be disappointed in this hope, and, indignant, alarmed almost, at the prospect of a lonesome evening under these circumstances, she ran hastily down to the gate to meet him, crying:

“Oh, Ned, you look so troubled I know you have only come home for a hurried supper. But you cannot leave me to-night. Tennie” (their only maid) “has gone for a holiday, and I never can stay in this house alone with all

that." She pointed to the small bag he carried, which, as she knew, was filled to bursting with bank notes.

He certainly looked troubled. It is hard to resist the entreaty in a young bride's uplifted face. But this time he could not help himself, and he said:

"I am dreadful sorry, but I must ride over to Fairbanks to-night. Mr. Pierson has given me an imperative order to conclude a matter of business there, and it is very important that it should be done. I should lose my position if I neglected the matter, and no one but Hasbrouck and Suffern knows that we keep the money in the house. I have always given out that I intrusted it to Hale's safe over night."

"But I cannot stand it," she persisted. "You have never left me on these nights. That is why I let Tennie go. I will spend the evening at The Larches, or, better still, call in Mr. and Mrs. Talcott to keep me company."

But her husband did not approve of her going out or of her having company. The Larches was too far away, and as for Mr. and Mrs. Talcott, they were meddlesome people, whom he had never liked; besides, Mrs. Talcott was delicate, and the night threatened storm. It seemed hard to subject her to this ordeal, and he showed that he thought so by his manner, but, as circumstances were, she would have to stay alone, and he only hoped she would be brave and go to bed like a good girl, and think nothing about the money, which he would take care to put away in a very safe place.

"Or," said he, kissing her downcast face, "perhaps you would rather hide it yourself; women always have curious ideas about such things."

"Yes, let me hide it," she murmured. "The money, I mean, not the bag. Every one knows the bag. I should never dare to leave it in that." And begging him to unlock it, she began to empty it with a feverish haste that rather alarmed him, for he surveyed her anxiously and shook his head as if he dreaded the effects of this excitement upon her.

But as he saw no way of averting it he confined himself to using such soothing words as were at his command, and then, humoring her weakness, helped her to arrange the bills in the place she had chosen, and restuffing the bag with old receipts till it acquired its former dimensions, he put a few bills on top to make the whole look natural, and, laughing at her white face, relocked the bag and put the key back in his pocket.

“There, dear; a notable scheme and one that should relieve your mind entirely!” he cried. “If any one should attempt burglary in my absence and should succeed in getting into a house as safely locked as this will be when I leave it, then trust to their being satisfied when they see this booty, which I shall hide where I always hide it—in the cupboard over my desk.”

“And when will you be back?” she murmured, trembling in spite of herself at these preparations.

“By one o’clock if possible. Certainly by two.”

“And our neighbors go to bed at ten,” she murmured. But the words were low, and she was glad he did not hear them, for if it was his duty to obey the orders he had received, then it was her duty to meet the position in which it left her as bravely as she could.

At supper she was so natural that his face rapidly brightened, and it was with quite an air of cheerfulness that he rose at last to lock up the house and make such preparations as were necessary for his dismal ride over the mountains to Fairbanks. She had the supper dishes to wash up in Tennie’s absence, and as she was a busy little housewife she found herself singing a snatch of song as she passed back and forth from dining-room to kitchen. He heard it, too, and smiled to himself as he bolted the windows on the ground floor and examined the locks of the three lower doors, and when he finally came into the kitchen with his greatcoat on to give her his final kiss, he had but one parting injunction to urge, and that was that she should lock the front door after him and then forget the whole matter till she heard his double knock at midnight.

She smiled and held up her ingenuous face.

“Be careful of yourself,” she murmured. “I hate this dark ride for you, and on such a night too.” And she ran with him to the door to look out.

“It is certainly very dark,” he responded, “but I’m to have one of Brown’s safest horses. Do not worry about me. I shall do well enough, and so will you, too, or you are not the plucky little woman I have always thought you.”

She laughed, but there was a choking sound in her voice that made him look at her again. But at sight of his anxiety she recovered herself, and pointing to the clouds said earnestly:

“It is going to snow. Be careful as you ride by the gorge, Ned; it is very deceptive there in a snowstorm.”

But he vowed that it would not snow before morning, and giving her one final embrace he dashed down the path toward Brown’s livery stable. “Oh, what is the matter with me?” she murmured to herself as his steps died out in the distance. “I never knew I was such a coward.” And she paused for a moment, looking up and down the road, as if in despite of her husband’s command she had the desperate idea of running away to some neighbor.

But she was too loyal for that, and smothering a sigh she retreated into the house. As she did so the first flakes fell of the storm that was not to have come till morning.

It took her an hour to get her kitchen in order, and nine o’clock struck before she was ready to sit down. She had been so busy she had not noticed how the wind had increased or how rapidly the snow was falling. But when she went to the front door for another glance up and down the road she started back, appalled at the fierceness of the gale and at the great pile of snow that had already accumulated on the doorstep.

Too delicate to breast such a wind, she saw herself robbed of her last hope of any companionship, and sighing heavily she locked and bolted the door for the night and went back into her little sitting-room, where a great fire was burning. Here she sat down, and determined, now that she must pass the evening alone, to do it as cheerfully as possible, and so began to sew. “Oh, what a Christmas eve!” she thought, and a picture of other homes rose before her eyes, homes in which husbands sat by wives and brothers by sisters, and a great wave of regret poured over her and a longing for something, she hardly dared say what, lest her unhappiness should acquire a sting that would leave traces beyond the passing moment. The room in which she sat was the only one on the ground floor except the dining-room and kitchen. It therefore was used both as parlor and sitting-room, and held not only her piano, but her husband’s desk.

Communicating with it was the tiny dining-room. Between the two, however, was an entry leading to a side entrance. A lamp was in this entry, and she had left it burning, as well as the one in the kitchen, that the house might look cheerful and as if all the family were at home.

She was looking toward this entry and wondering whether it was the mist made by her tears that made it look so dismally dark to her when there came

a faint sound from the door at its further end.

Knowing that her husband must have taken peculiar pains with the fastenings of this door, as it was the one toward the woods and therefore most accessible to wayfarers, she sat where she was, with all her faculties strained to listen. But no further sound came from that direction, and after a few minutes of silent terror she was allowing herself to believe that she had been deceived by her fears when she suddenly heard the same sound at the kitchen door, followed by a muffled knock.

Frightened now in good earnest, but still alive to the fact that the intruder was as likely to be a friend as a foe, she stepped to the door, and with her hand on the lock stooped and asked boldly enough who was there. But she received no answer, and more affected by this unexpected silence than by the knock she had heard she recoiled farther and farther till not only the width of the kitchen, but the dining-room also, lay between her and the scene of her alarm, when to her utter confusion the noise shifted again to the side of the house, and the door she thought so securely fastened, swung violently open as if blown in by a fierce gust, and she saw precipitated into the entry the burly figure of a man covered with snow and shaking with the violence of the storm that seemed at once to fill the house.

Her first thought was that it was her husband come back, but before she could clear her eyes from the cloud of snow which had entered with him he had thrown off his outer covering and she found herself face to face with a man in whose powerful frame and cynical visage she saw little to comfort her and much to surprise and alarm.

“Ugh!” was his coarse and rather familiar greeting. “A hard night, missus! Enough to drive any man indoors. Pardon the liberty, but I couldn’t wait for you to lift the latch; the wind drove me right in.”

“Was—was not the door locked?” she feebly asked, thinking he must have staved it in with his foot, that looked only too well fitted for such a task.

“Not much,” he chuckled. “I s’pose you’re too hospitable for that.” And his eyes passed from her face to the comfortable firelight shining through the sitting-room.

“Is it refuge you want?” she demanded, suppressing as much as possible all signs of fear.

“Sure, missus—what else! A man can’t live in a gale like that, specially after a tramp of twenty miles or more. Shall I shut the door for you?” he asked, with a mixture of bravado and good nature that frightened her more and more.

“I will shut it,” she replied, with a half notion of escaping this sinister stranger by a flight through the night.

But one glance into the swirling snow-storm deterred her, and making the best of the alarming situation, she closed the door, but did not lock it, being more afraid now of what was inside the house than of anything left to threaten her from without.

The man, whose clothes were dripping with water, watched her with a cynical smile, and then, without any invitation, entered the dining-room, crossed it and moved toward the kitchen fire.

“Ugh! ugh! But it is warm here!” he cried, his nostrils dilating with an animal-like enjoyment that in itself was repugnant to her womanly delicacy. “Do you know, missus, I shall have to stay here all night? Can’t go out in that gale again; not such a fool.” Then with a sly look at her trembling form and white face he insinuatingly added, “All alone, missus?”

The suddenness with which this was put, together with the leer that accompanied it, made her start. Alone? Yes, but should she acknowledge it? Would it not be better to say that her husband was up-stairs. The man evidently saw the struggle going on in her mind, for he chuckled to himself and called out quite boldly:

“Never mind, missus; it’s all right. Just give me a bit of cold meat and a cup of tea or something, and we’ll be very comfortable together. You’re a slender slip of a woman to be minding a house like this. I’ll keep you company if you don’t mind, leastwise until the storm lets up a bit, which ain’t likely for some hours to come. Rough night, missus, rough night.”

“I expect my husband home at any time,” she hastened to say. And thinking she saw a change in the man’s countenance at this she put on quite an air of sudden satisfaction and bounded toward the front of the house. “There! I think I hear him now,” she cried.

Her motive was to gain time, and if possible to obtain the opportunity of shifting the money from the place where she had first put it into another and safer one. “I want to be able,” she thought, “of swearing that I have no

money with me in this house. If I can only get it into my apron I will drop it outside the door into the snowbank. It will be as safe there as in the bank it came from.” And dashing into the sitting-room she made a feint of dragging down a shawl from a screen, while she secretly filled her skirt with the bills which had been put between some old pamphlets on the bookshelves.

She could hear the man grumbling in the kitchen, but he did not follow her front, and taking advantage of the moment’s respite from his none too encouraging presence she unbarred the door and cheerfully called out her husband’s name.

The ruse was successful. She was enabled to fling the notes where the falling flakes would soon cover them from sight, and feeling more courageous, now that the money was out of the house, she went slowly back, saying she had made a mistake, and that it was the wind she had heard.

The man gave a gruff but knowing guffaw and then resumed his watch over her, following her steps as she proceeded to set him out a meal, with a persistency that reminded her of a tiger just on the point of springing. But the inviting look of the viands with which she was rapidly setting the table soon distracted his attention, and allowing himself one grunt of satisfaction, he drew up a chair and set himself down to what to him was evidently a most savory repast.

“No beer? No ale? Nothing o’ that sort, eh? Don’t keep a bar?” he growled, as his teeth closed on a huge hunk of bread.

She shook her head, wishing she had a little cold poison bottled up in a tight-looking jug.

“Nothing but tea,” she smiled, astonished at her own ease of manner in the presence of this alarming guest.

“Then let’s have that,” he grumbled, taking the bowl she handed him, with an odd look that made her glad to retreat to the other side of the room.

“Jest listen to the howling wind,” he went on between the huge mouthfuls of bread and cheese with which he was gorging himself. “But we’re very comfortable, we two! We don’t mind the storm, do we?”

Shocked by his familiarity and still more moved by the look of mingled inquiry and curiosity with which his eyes now began to wander over the walls and cupboards, she took an anxious step toward the side of the house

looking toward her neighbors, and lifting one of the shades, which had all been religiously pulled down, she looked out. A swirl of snow-flakes alone confronted her. She could neither see her neighbors, nor could she be seen by them. A shout from her to them would not be heard. She was as completely isolated as if the house stood in the center of a desolate western plain.

"I have no trust but in God," she murmured as she came from the window. And, nerved to meet her fate, she crossed to the kitchen.

It was now half-past ten. Two hours and a half must elapse before her husband could possibly arrive.

She set her teeth at the thought and walked resolutely into the room.

"Are you done?" she asked.

"I am, ma'am," he leered. "Do you want me to wash the dishes? I kin, and I will." And he actually carried his plate and cup to the sink, where he turned the water upon them with another loud guffaw.

"If only his fancy would take him into the pantry," she thought, "I could shut and lock the door upon him and hold him prisoner till Ned gets back."

But his fancy ended its flight at the sink, and before her hopes had fully subsided he was standing on the threshold of the sitting-room door.

"It's pretty here," he exclaimed, allowing his eye to rove again over every hiding-place within sight. "I wonder now"—He stopped. His glance had fallen on the cupboard over her husband's desk.

"Well?" she asked, anxious to break the thread of his thought, which was only too plainly mirrored in his eager countenance.

He started, dropped his eyes, and turning looked at her with a momentary fierceness. But, as she did not let her own glance quail, but continued to look at him with what she meant for a smile on her pale lips, he subdued this outward manifestation of passion, and, chuckling to hide his embarrassment, began backing into the entry, leering in evident enjoyment of the fears he caused, with what she felt was a most horrible smile. Once in the hall, he hesitated, however, for a long time; then he slowly went toward the garment he had dropped on entering and stooping, drew from underneath its folds a wicked-looking stick. Giving a kick to the coat, which sent it into a remote corner, he bestowed upon her another smile, and still carrying the stick went slowly and reluctantly away into the kitchen.

“Oh, God Almighty, help me!” was her prayer.

There was nothing for her to do now but endure, so throwing herself into a chair, she tried to calm the beating of her heart and summon up courage for the struggle which she felt was before her. That he had come to rob and only waited to take her off her guard she now felt certain, and rapidly running over in her mind all the expedients of self-defense possible to one in her situation, she suddenly remembered the pistol which Ned kept in his desk. Oh, why had she not thought of it before! Why had she let herself grow mad with terror when here, within reach of her hand, lay such a means of self-defense? With a feeling of joy (she had always hated pistols before and scolded Ned when he bought this one) she started to her feet and slid her hand into the drawer. But it came back empty. Ned had taken the weapon away with him.

For a moment, a surge of the bitterest feeling she had ever experienced passed over her; then she called reason to her aid and was obliged to acknowledge that the act was but natural, and that from his standpoint he was much more likely to need it than herself. But the disappointment, coming so soon after hope, unnerved her, and she sank back in her chair, giving herself up for lost.

How long she sat there with her eyes on the door, through which she momentarily expected her assailant to reappear, she never knew. She was conscious only of a sort of apathy that made movement difficult and even breathing a task. In vain she tried to change her thoughts. In vain she tried to follow her husband in fancy over the snow-covered roads and into the gorge of the mountains. Imagination failed her at this point. Do what she would, all was misty in her mind's eye, and she could not see that wandering image. There was blankness between his form and her, and no life or movement anywhere but here in the scene of her terror.

Her eyes were on a strip of rug that covered the entry floor, and so strange was the condition of her mind that she found herself mechanically counting the tassels that finished its edge, growing wroth over one that was worn, till she hated that sixth tassel and mentally determined that if she ever outlived this night she would strip them all off and be done with them.

The wind had lessened, but the air had grown cooler and the snow made a sharp sound where it struck the panes. She felt it falling, though she had cut off all view of it. It seemed to her that a pall was settling over the world

and that she would soon be smothered under its folds. Meanwhile no sound came from the kitchen, only that dreadful sense of a doom creeping upon her—a sense that grew in intensity till she found herself watching for the shadow of that lifted stick on the wall of the entry, and almost imagined she saw the tip of it appearing, when without any premonition, that fatal side door again blew in and admitted another man of so threatening an aspect that she succumbed instantly before him and forgot all her former fears in this new terror.

The second intruder was a negro of powerful frame and lowering aspect, and as he came forward and stood in the doorway there was observable in his fierce and desperate countenance no attempt at the insinuation of the other, only a fearful resolution that made her feel like a puppet before him, and drove her, almost without her volition, to her knees.

“Money? Is it money you want?” was her desperate greeting. “If so, here’s my purse and here are my rings and watch. Take them and go.”

But the stolid wretch did not even stretch out his hands. His eyes went beyond her, and the mingled anxiety and resolve which he displayed would have cowed a stouter heart than that of this poor woman.

“Keep de trash,” he growled. “I want de company’s money. You ‘ve got it—two thousand dollars. Show me where it is, that’s all, and I won’t trouble you long after I close on it.”

“But it’s not in the house,” she cried. “I swear it is not in the house. Do you think Mr. Chivers would leave me here alone with two thousand dollars to guard?”

But the negro, swearing that she lied, leaped into the room, and tearing open the cupboard above her husband’s desk, seized the bag from the corner where they had put it.

“He brought it in this,” he muttered, and tried to force the bag open, but finding this impossible he took out a heavy knife and cut a big hole in its side. Instantly there fell out the pile of old receipts with which they had stuffed it, and seeing these he stamped with rage, and flinging them in one great handful at her rushed to the drawers below, emptied them, and, finding nothing, attacked the bookcase.

“The money is somewhere here. You can’t fool me,” he yelled. “I saw the spot your eyes lit on when I first came into the room. Is it behind these

books?” he growled, pulling them out and throwing them helter-skelter over the floor. “Women is smart in the hiding business. Is it behind these books, I say?”

They had been, or rather had been placed between the books, but she had taken them away, as we know, and he soon began to realise that his search was bringing him nothing, for leaving the bookcase he gave the books one kick, and seizing her by the arm, shook her with a murderous glare on his strange and distorted features.

“Where’s the money?” he hissed. “Tell me, or you are a goner.”

He raised his heavy fist. She crouched and all seemed over, when, with a rush and cry, a figure dashed between them and he fell, struck down by the very stick she had so long been expecting to see fall upon her own head. The man who had been her terror for hours had at the moment of need acted as her protector.

She must have fainted, but if so, her unconsciousness was but momentary, for when she again recognized her surroundings she found the tramp still standing over her adversary.

“I hope you don’t mind, ma’am,” he said, with an air of humbleness she certainly had not seen in him before, “but I think the man’s dead.” And he stirred with his foot the heavy figure before him.

“Oh, no, no, no!” she cried. “That would be too fearful. He’s shocked, stunned; you cannot have killed him.”

But the tramp was persistent. “I’m ‘fraid I have,” he said. “I done it before, and it’s been the same every time. But I couldn’t see a man of that color frighten a lady like you. My supper was too warm in me, ma’am. Shall I throw him outside the house?”

“Yes,” she said, and then, “No; let us first be sure there is no life in him.” And, hardly knowing what she did, she stooped down and peered into the glassy eyes of the prostrate man.

Suddenly she turned pale—no, not pale, but ghastly, and cowering back, shook so that the tramp, into whose features a certain refinement had passed since he had acted as her protector, thought she had discovered life in those set orbs, and was stooping down to make sure that this was so, when he saw

her suddenly lean forward and, impetuously plunging her hand into the negro's throat, tear open the shirt and give one look at his bared breast.

It was white.

"O God! O God!" she moaned, and lifting the head in her two hands she gave the motionless features a long and searching look. "Water!" she cried. "Bring water." But before the now obedient tramp could respond, she had torn off the woolly wig disfiguring the dead man's head, and seeing the blond curls beneath had uttered such a shriek that it rose above the gale and was heard by her distant neighbors.

It was the head and hair of her husband.

They found out afterwards that he had contemplated this theft for months, that each and every precaution possible to a successful issue to this most daring undertaking had been made use of and that but for the unexpected presence in the house of the tramp, he would doubtless have not only extorted the money from his wife, but have so covered up the deed by a plausible *alibi* as to have retained her confidence and that of his employers.

Whether the tramp killed him out of sympathy for the defenseless woman or in rage at being disappointed in his own plans has never been determined. Mrs. Chivers herself thinks he was actuated by a rude sort of gratitude.

*** END OF THE PROJECT GUTENBERG EBOOK MIDNIGHT IN
BEAUCHAMP ROW ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.